

Calendar Line # 3
Case Name Michelle Harper vs The Salvation Army
Case No. 25CV458778
Demurrer Before the court is defendant The Salvation Army’s demurrer to plaintiff Michelle Harper’s second amended complaint. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows. <u>I. BACKGROUND</u> Plaintiff Michelle Harper (“Harper”) began working for defendant The Salvation Army (erroneously sued as The Salvation Army ARC San Jose; hereafter, “Salvation Army”) in or around July 2023 as a Sales Associate at defendant’s location in San Jose. (Second Amended Complaint (“SAC”), ¶9). Plaintiff Harper’s primary responsibility was stacking racks with donated clothing and ringing sales for which she earned \$18 per hour. (<i>Id.</i>). On or about December 31, 2023, plaintiff Harper began to feel symptoms associated with COVID-19 and later tested positive. (SAC, ¶10). Plaintiff Harper immediately notified the store manager, Richard, via text and he advised plaintiff Harper she would need to provide a negative test before she would be allowed to return to work. (<i>Id.</i>). Plaintiff Harper’s symptoms did not improve and after additional testing, plaintiff Harper was believed to have long-COVID which interfered with her major life activities. (SAC, ¶11). Plaintiff Harper’s physician recommended she perform “light duty” work. (SAC, ¶12). Plaintiff Harper provided defendant Salvation Army with a copy of her doctor’s note, but defendant Salvation Army failed to engage in any dialogue or take any steps to determine whether defendant Salvation Army could accommodate plaintiff Harper’s restrictions. Defendant Salvation Army put plaintiff Harper on leave through February 16, 2024. (SAC, ¶¶12 – 14). Plaintiff Harper submitted doctor’s notes extending her leave through March 1, 2024. (SAC, ¶15). However, on or about February 21, 2024, plaintiff Harper received paperwork letting her know her employment had been terminated with the stated reason that plaintiff Harper “failed to” provide a doctor’s note extending her leave beyond February 16, 2024. (SAC, ¶16). On February 13, 2025, plaintiff Harper filed a complaint against defendant Salvation Army. On April 14, 2025, defendant Salvation Army filed a demurrer and motion to strike a portion of plaintiff Harper’s complaint. On June 30, 2025, plaintiff Harper a FAC which asserted the following causes of action: (1) Unruh Civil Rights Act, California Civil Code §51 et seq. (2) Bane Civil Rights Act, California Civil Code §52.1 (3) California Disabled Persons Act, California Civil Code §54 et seq. (4) Wrongful Termination in Violation of Public Policy On August 4, 2025, plaintiff filed an amendment substituting The Salvation Army for Doe defendant number one. On August 8, 2025, defendant Salvation Army filed a demurrer to plaintiff Harper’s FAC. On September 9, 2025, the court issued an order sustaining, without leave to amend, defendant Salvation Army’s demurrer to the first through third causes of action of plaintiff’s FAC and sustaining, with leave to amend, defendant Salvation Army’s demurrer to the fourth cause of action of plaintiff’s FAC. On October 3, 2025, plaintiff Harper filed the now operative SAC which asserts a single cause of action for wrongful termination in violation of public policy.

On October 29, 2025, defendant Salvation Army filed the motion now before the court, a demurrer to plaintiff Harper's SAC.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 430.10, a party may demur to a complaint on the grounds that it "does not state facts sufficient to constitute a cause of action." (Code Civ. Proc., § 430.10, subd. (e)). A demurrer tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747 (*Hahn*)). When considering demurrers, courts accept all well pleaded facts as true. (*Fox v. JAMDAT Mobile, Inc.* (2010) 185 Cal.App.4th 1068, 1078). In ruling on a demurrer, the Court treats it "as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." (*Piccinini v. Cal. Emergency Management Agency* (2014) 226 Cal.App.4th 685, 688, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318 (*Blank*)).

"A general demurrer will lie where the complaint 'has included allegations that clearly disclose some defense or bar to recovery.' [Citation.]" (*Cryolife, Inc. v. Superior Court* (2003) 110 Cal.App.4th 1145, 1152). Defendants Chen and YESI generally demur to Plaintiff's first cause of action for negligence because the FAC includes allegations that Plaintiff released defendant Chen and other parties from all liability for the accident. (FAC, ¶12 and Exh. A). "The existence of a valid release is a complete defense to a tort action against the releasee." (*Rodriguez v. Oto* (2013) 212 Cal.App.4th 1020, 1026 (*Rodriguez*)).

"[W]hile an at-will employee may be terminated for no reason, or for an arbitrary or irrational reason, there can be no right to terminate for an unlawful reason or a purpose that contravenes fundamental public policy. Any other conclusion would sanction lawlessness, which courts by their very nature are bound to oppose.'" (*Casella v. SouthWest Dealer Services, Inc.* (2007) 157 Cal.App.4th 1127, 1138–1139 [69 Cal. Rptr. 3d 445]). "The elements of a claim for wrongful discharge in violation of public policy are (1) an employer-employee relationship, (2) the employer terminated the plaintiff's employment, (3) the termination was substantially motivated by a violation of public policy, and (4) the discharge caused the plaintiff harm." (*Yau v. Allen* (2014) 229 Cal.App.4th 144, 154 [176 Cal. Rptr. 3d 824]).

(*Garcia-Brower v. Premier Automotive Imports of CA, LLC* (2020) 55 Cal.App.5th 961, 973; see also CACI, No. 2430).

III. ANALYSIS

In demurring to plaintiff Harper's SAC, defendant Salvation Army contends the cause of action for wrongful termination in violation of public policy fails because plaintiff Harper expressly concedes in her SAC that she "cannot allege violations of the FEHA against [Salvation Army] because it's a religious employer." (SAC, ¶22. See also Request for Judicial Notice in Support of Defendant The Salvation Army's Demurrer, etc., Exhibit 1).¹ Employers that are exempt from FEHA are, in turn, exempt from *Tameny* wrongful termination claims rooted in violations of FEHA.

[A] public policy purportedly tethered to the FEHA statutes does not give rise to a cause of action for a wrongful termination in violation of public policy when the claim would be precluded under the FEHA because the act specifically exempts the defendant from the definition of employer.

(*Henry v. Red Hill Evangelical Lutheran Church of Tustin* (2011) 201 Cal.App.4th 1041, 1050; see also *Kelly v. Methodist Hospital of So. California* (2000) 22 Cal.4th 1108, 1126—hospital exempt from a claim for wrongful termination in violation of public policy based upon the public policy expressed in FEHA because hospital exempt

¹ Defendant Salvation Army's request for judicial notice that it is a religious corporation and is not organized for the private gain of any person is GRANTED. Evid. Code, §452, subd. (c); *O'Gara Coach Co., LLC v. Ra* (2019) 30 Cal.App.5th 1115, 1121—granting judicial notice of documents filed with the Secretary of State).

from FEHA as a religious organization; see also *Jennings v. Marralle* (1994) 8 Cal.4th 121, 135–136—“It would be unreasonable to expect employers who are expressly exempted from the FEHA ban on age discrimination to nonetheless realize that they must comply with the law from which they are exempted under pain of possible tort liability.”)

In opposition, plaintiff Harper suggests disability discrimination can be tethered to other legislative enactments apart from FEHA, but no such constitutional or statutory provisions have been alleged to be applicable or otherwise identified as being applicable in her SAC. That defendant can theoretically be liable is not the standard on a demurrer.

Plaintiff has the burden to show in what manner she can amend its complaint and how that amendment will change the legal effect of the pleading. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349). In her opposition, plaintiff Harper contends she has established non-FEHA bases for her wrongful termination claim, but the court is not persuaded that plaintiff Harper has met her burden.

IV. CONCLUSION

Based on the foregoing, defendant Salvation Army’s demurrer to plaintiff Harper’s SAC on the ground that the pleading does not state facts sufficient to constitute a cause of action [Code Civ. Proc., §430.10, subd. (e)] for wrongful termination in violation of public policy is SUSTAINED WITHOUT LEAVE TO AMEND.

The Court will prepare the formal Order.

Calendar Line # 4

Case Name Paul Beckett et al vs Ford Motor Company et al

Case No. 25CV460160

Petition to Compel Arbitration

I. BACKGROUND

Plaintiffs Paul T. Beckett and Ann K. Beckett purchased a 2022 Ford Mustang, Vehicle Identification Number 3FMTK2R71NMA02648 (“Subject Vehicle”) in May 2022 from Cypress Coast Ford Lincoln Mercury (“Dealership”). (Complaint at ¶ 7). Plaintiffs delivered the Subject Vehicle to Dealership for substantial repair on at least one occasion. (*Id.* at ¶ 59). Plaintiffs allege that Dealership “breached its duty to Plaintiffs to use ordinary care and skill by failing to properly store, prepare, and repair the Subject Vehicle in accordance with industry standards.” (*Id.* at ¶ 61). Plaintiffs sued Dealership and Ford Motor Company in March 2025. The sole cause of action alleged against Dealership is for negligent repair.

At issue is Dealership’s petition to compel arbitration, based on the Retail Installment Sales Contract (“RISC”) signed by Plaintiffs and Dealership when Plaintiffs purchased the Subject Vehicle. Having reviewed the language of the RISC’s arbitration provision and the circumstances of its execution, the court will grant the petition and stay the action.

II. LEGAL STANDARD

Dealership maintains that the Federal Arbitration Act (“FAA”) governs the arbitration provision based on the language itself and because the agreement affects interstate commerce. (Motion to Compel Arbitration at p. 6:24-7:1). The arbitration provision states “[a]ny arbitration under this Arbitration Provision shall be governed by the Federal Arbitration Act (9 U.S.C. §§ 1 et seq.) and not by any state law concerning arbitration.” (Declaration of Trina Clayton [“Clayton Decl.”], Exh. A at p. 7). Under the FAA, the court’s role is limited to determining “(1)